



POLICE DEPARTMENT

November 25, 2025

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In the Matter of the Charges and Specifications :

Case No.

- against - :

C-031732

Lieutenant Steven Caraballo :

Tax Registry No. 932412 :

Emergency Service Unit :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Amanda Rodriguez & Tylan Green, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

James Moschella, Esq.
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233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Steven Caraballo on or about October 9, 2021, at approximately 1100 hours, while assigned to the Emergency Service Unit and on duty, in the vicinity of 225 [REDACTED] [REDACTED], engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that Lieutenant Caraballo damaged Complainant's [REDACTED] front door without sufficient legal authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

2. Lieutenant Steven Caraballo, on or about October 9, 2021, at approximately 1100 hours, while assigned to the Emergency Service Unit and on duty, in the vicinity of [REDACTED] [REDACTED], engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that Lieutenant Caraballo entered [REDACTED] [REDACTED], without sufficient authority.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

3. Lieutenant Steven Carballo, on or about October 9, 2021, at approximately 1100 hours, while assigned to the Emergency Service Unit and on duty, in the vicinity of [REDACTED] [REDACTED] abused their authority as a member of the New York City Police Department, in that Lieutenant Caraballo searched [REDACTED] [REDACTED] without sufficient legal authority.

P.G. 212-11, Page 8, Paragraph 40

INVESTIGATIVE
ENCOUNTERS

P.G. 200-02

MISSION, VISION, AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 21, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The

Civilian Complaint Review Board (hereinafter "CCRB") did not call any witnesses, but offered

Body-Worn Camera (“BWC”) footage and the recorded and transcribed hearsay statement of [REDACTED] (hereinafter “Complainant”). Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of the subject charges.

ANALYSIS

The following facts are undisputed:

On the morning of October 9, 2021, Complainant was inside her apartment when she had a verbal dispute with her ex-boyfriend, M.L. M.L. left the apartment shortly after the argument but remained in the hallway of the building where he spoke with his mother, who resides in California. M.L. told his mother what transpired between him and his ex-girlfriend, and his mother called 911 and reported the incident.

When officers arrived on scene, M.L. told them that Complainant damaged his Louis Vuitton designer bag by slashing it with a knife and that she would not allow him to retrieve his items from her home. M.L. also told police that Complainant suffers from mental health issues; specifically stating that she is bipolar and not taking her prescribed medication. One of the officers on scene also conducted a cursory background check on Complainant and discovered that she had been arrested in the past for Attempted Manslaughter. Based upon the information he gathered at the point, Sergeant Sze, the highest-ranking member of service (“MOS”) on scene, determined that Complainant was an emotionally disturbed person (“EDP”) who may pose a danger to herself or others.

The officers proceeded to knock on Complainant's door and asked her to open it. Complainant refused and informed them that her lawyer explained to her that she did not need to open the door. Thereafter, pursuant to Department protocol, Sergeant Sze contacted the Emergency Service Unit ("ESU") to assist with a "barricaded EDP." While they waited for ESU to arrive, various officers, including Sergeant Sze, continued pleading with Complainant to open the door.

A few moments prior to ESU's arrival, Sergeant Sze questioned whether he had made the right decision in contacting ESU, because he no longer believed Complainant was an imminent danger to herself or others. Once ESU arrived, they immediately initiated steps to access Complainant's apartment by removing the peephole from her door to gain a visual of Complainant. They asked the other officers and Sergeant Sze to step away from the door and wait near the elevator bank while they worked on the door. As ESU was doing this, Sergeant Sze asked them to hold off on removing her door until the duty captain arrived and he could consult further about next steps. ESU assured Sergeant Sze that they would not remove the door until the duty captain arrived.

Captain Figueroa, the duty captain on the date of this incident, and Respondent arrived on scene at approximately the same time. Sergeant Sze immediately approached Captain Figueroa by the elevators to discuss his concerns about the situation. BWC shows that Respondent simultaneously walked towards Complainant's apartment door where the ESU team were actively removing the peephole from her door. When Respondent came back to the elevator bank, he asked to speak with Sergeant Sze "on the side." As Respondent and Sergeant Sze walked away from Captain Figueroa, Sergeant Sze stated that he felt light-headed and then

fainted. Respondent immediately requested assistance from EMS, who was already on scene, to care for Sergeant Sze.

Shortly thereafter, a decision was made by Respondent and Captain Figueroa to take down Complainant's door. ESU inserted a camera into the peephole that they removed. Respondent directed members of the ESU team to warn Complainant that if she did not open the door, they would forcibly open it. When Complainant did not open the door, ESU breached the door. Once inside, a member of the ESU team took Complainant into custody and Respondent proceeded to conduct, what he characterized as a protective sweep of her apartment. After securing the premises, Respondent asked the original responding officers to take over.

The issues in this case are: (1) whether Respondent damaged Complainant's door without police necessity; (2) whether Respondent entered her apartment without sufficient authority and (3) whether Respondent searched Complainant's apartment without sufficient authority. Having considered the testimony, evidence and arguments put forth by the parties, I find: (1) Respondent did damage Complainant's door but it was not without police necessity, (2) Respondent entered Complainant's apartment with sufficient legal authority and (3) Respondent's "search" of the apartment constituted a permissible protective sweep of the premises. What follows is a summary of the evidence presented by the parties which is relevant to the disputed facts.

Respondent testified that he has been a "citywide supervisor" in ESU for approximately nine years. He described the types of jobs that ESU routinely handles as: "all jobs that police officers need help with" including, "barricaded EDPs, barricaded perps, people that get hit by trains, people threatening to jump from a bridge or other structure." When asked to elaborate on the term "barricaded EDP," Respondent answered: "A barricaded EDP is a person that a police officer reasonably believes is apparently mentally ill, emotionally disturbed or a danger to

themselves or others; confined to an area and needs immediate medical attention.” Respondent asserted that over the course of his career, he had responded to “hundreds” of calls for barricaded EDPs. (Tr. 21-23)

Respondent explained that generally, when ESU arrives on scene, he speaks to the patrol supervisor to gather information before deciding how ESU will proceed with gaining entry. He further expounded that there are specific protocols that ESU follows with regard to barricaded EDPs. Specifically, for a barricaded EDP, the ESU team “immediately ties off the door” so they can control the subject’s ability to enter and exit. They then remove the peephole so that they can have a visual on the subject and ensure the subject is not in immediate danger. (Tr. 24-25)

Respondent testified that on October 9, 2021, he responded to a job of a barricaded EDP inside an apartment of a residential building located at [REDACTED] [REDACTED]. A team of ESU officers arrived on scene prior to Respondent’s arrival. Respondent recalled that immediately after arriving, he spoke to the ESU team stationed at Complainant’s door. Thereafter, Respondent consulted with the duty captain, sergeant, patrol officers and EMS who were congregated near the elevators. Respondent joined a conversation that was taking place between the patrol sergeant and duty captain to gain a better understanding of the situation. Sergeant Sze explained that he believed Complainant was an EDP because she was diagnosed with bipolar disorder and was behaving in an erratic manner. After the duty captain asked Sergeant Sze more questions, Respondent asked to speak to him “on the side” so that they could be “one on one” because he felt that Sergeant Sze was “nervous around the duty captain.” (Tr. 26-30)

As Respondent and Sergeant Sze were walking down the hallway to speak privately, Respondent noticed that Sergeant Sze was sweating profusely. Respondent asked Sergeant Sze if he was ok just before Sergeant Sze fainted on him. At that point, Respondent was unable to have

any further conversation with Sergeant Sze. Respondent asked EMS to tend to Sergeant Sze while he shifted his focus back to the barricaded EDP. (Tr. 30-31)

Shortly thereafter, Respondent ascertained that Complainant was “bipolar, not taking her medication, and deemed a danger to herself because she had used a knife to stab [her ex-boyfriend’s] property.” (Tr. 32) He also learned that Complainant had been previously arrested for attempted manslaughter. Based upon that information, Respondent concluded that Complainant was having a mental health crisis and she may be a danger to herself. As far as Respondent was concerned, he was treating this situation as a barricaded EDP and not a barricaded perpetrator. Respondent explained that ESU’s job in that situation was to “render the scene safe and move on.” He then advised the duty captain what he could do tactically to enter the apartment. According to Respondent, ultimately, the duty captain made the decision that they would enter Complainant’s apartment, but Respondent concurred that it was the right decision to make under the circumstances. (Tr. 33-36)

Respondent could not recall exactly when the peephole on Complainant’s door was removed, but he believed it was before he arrived on scene. He explained that this is standard procedure for ESU to do that in this type of situation so that they can see what the subject is doing behind the door. Respondent also could not remember if he, personally, attempted to speak with Complainant before they removed her door, but he recalls that other MOS did try communicating with her. Respondent testified that they used a hydraulic tool called an Ogura to open Complainant’s door. He explained that this tool usually causes damage to the door, but after ESU effectuates entry they then “render the door operable.” (Tr. 33-34, 37)

Once they forced the door open, ESU officers immediately handcuffed Complainant to ensure her safety, as well as their own. Respondent then conducted what he characterized as a “protective sweep” of the apartment. He elaborated that:

[I]n a protective sweep we want to make sure that the gas is not on in the stove; make sure the water is not running in the tub or in the kitchen. You want to make sure there’s no kids in the crib being left alone. Even though Complainant was by herself, we would check places where people can hide or something can be placed into. We would check closets, under the couch, underneath the bed, the refrigerator, the freezer, the dishwasher, the oven, cabinets, top and bottom.¹ (Tr. 39)

Respondent further explained that even though it was alleged that Complainant used a knife to damage her ex-boyfriend’s property, ESU does not secure arrest evidence as part of their protective sweep. ESU’s function is to render the scene safe and then they turn it over to the other officers on scene to decide what happens next. Respondent estimated that ESU was inside Complainant’s apartment for approximately two minutes before they left.

CCRB offered the BWC footage of four MOS who were on scene on the date of the incident— Officer Font, Officer Hughes, Sergeant Sze and Respondent, CCRB’s Exhibits 6,7,8 and 9, respectively. The Tribunal carefully reviewed each of these videos and finds that they closely conform with Respondent’s version of events. CCRB argued that Respondent did not avail himself of the opportunity to gather information about the situation before deciding to effectuate entry into Complainant’s apartment; however, this Tribunal finds that to be a mischaracterization of the video evidence.

Sergeant Sze’s BWC shows that he was the first supervisor on scene and made a decision, based upon his initial investigation, to contact ESU to assist in gaining entry for a “barricaded perp.” (CCRB Ex. 8 at 2:03-2:45) Building management offered to gain access to

¹ Respondent was asked why he checks “refrigerator freezers” in a protective sweep and he explained that he checks anywhere “a person can fit.” He further explained that in past searches he has personally “found people underneath the cabinets” and in a “washing machine one time.” (Tr. 39)

Complainant's apartment using a key; however, Sergeant Sze maintained that ESU needed to assist with the entry for the safety of the officers given the information that Complainant was in possession of a knife (*Id.* at 5:17). Even after speaking with Complainant's former boyfriend and consulting with a duty captain, Sergeant Sze remained steadfast in his decision to have ESU respond. (*Id.* at 08:30-12:00) After further consultation with a "DV sergeant," Sergeant Sze was advised to change the call from a "barricaded perp" to a "barricaded EDP." (*Id.* at 17:20-21:00) Sergeant Sze then called the duty captain again to update him and informed him that this is not a "barricaded perp but just a barricaded EDP." Sergeant Sze stated that the reason he did not believe it was appropriate for them to gain entry with the building management's key is that Complainant has a "history of mental illness," she was "previously arrested for attempted manslaughter," she "has a knife" and "is acting irate." (*Id.* at 22:25-23:15) Toward the end of the conversation, it appeared that Sergeant Sze began to second-guess his decision for reasons that are not entirely clear to this Tribunal.

Sergeant Sze then attempted to speak with Complainant through her door to ascertain whether she was at risk of harming herself or others. It was at that moment that ESU officers, not including Respondent, arrived on scene. Sergeant Sze asked the ESU officers to hold off on the entry until the duty captain arrived. (CCRB Ex. 8 at 28:00-30:00)

Captain Figueroa and Respondent arrived at about the same time. Sergeant Sze immediately spoke to Captain Figueroa at the elevator bank as Respondent walked toward the ESU officers that were still by Complainant's door. (CCRB Ex. 8 at 34:41-35:30) About a minute later, Respondent returned and asked to speak with Sergeant Sze "on the side." Before Respondent and Sergeant Sze conferred, Sergeant Sze fainted. (CCRB Ex. 8 at 36:35)

Respondent's BWC footage (CCRB Ex. 9) corroborates Respondent's testimony at trial regarding the information he obtained prior to making entry into Complainant's apartment.

Moreover, Officer Font's BWC footage confirms that Respondent spoke to the initial responding officers and Captain Figueroa before effectuating entry into Complainant's apartment. (CCRB Ex. 6 at 1:07-1:13) The video evidence supports the reasonableness of Respondent's decision.

Complainant did not appear to testify at trial, but this Tribunal carefully listened to and read the accompanying transcript of her November 4, 2021 interview with CCRB. (CCRB Exs. 1 & 1A.) According to Complainant, on the date in question, she had just woken up when she heard her ex-boyfriend was outside her front door. The two spoke for approximately five minutes and during that conversation, she urged him to leave her alone. According to Complainant, her ex-boyfriend, M.L., threatened to call the police and repeatedly demanded that she open the door. Complainant opened the door and instructed him to leave her alone. (CCRB Ex. 1A at 12-13, 19-21, 34)

Complainant stated that as soon as she heard M.L. walk away, police officers arrived at her front door. She first heard them speak with her ex-boyfriend, who told police that she had a knife. An officer who she later identified as "Officer Biggers" then explained to her through the door, that they were present to verify whether she was a danger to herself. Complainant contacted her attorney, who advised her not to open the door because the officers did not have a warrant or a legitimate reason to gain access to her apartment. (CCRB Ex. 1A at 11, 21-25)

Complainant then began recording her interaction with police on her phone. She told Officer Biggers that she was not suicidal nor was she intending to harm herself. Officer Biggers referred to a report of a dispute the day prior. Complainant questioned why the police did not respond to the call the day before, and according to her, she received no response. Officers

repeatedly ordered her to “open the door,” because they “needed to see her.” Complainant maintained that she would not open the door and advised the officers to speak with her lawyer. (CCRB Ex. 1A at 11, 25-26, 41)

Complainant recalled that the officers first broke her door’s peephole; they then broke the lock and the door frame before finally entering her apartment. According to Complainant, she was still on the phone with her lawyer when an officer took her phone and threw it in the kitchen sink. She was immediately placed in handcuffs. Complainant claimed the officers would not let her put her shoes on and that two female officers then “dragged” her out while Officer Biggers searched her residence. (CCRB Ex. 1A at 34) The officers transported her to the precinct where one of the female officers processed her Criminal Mischief arrest. (CCRB Ex. 1A at 34-35, 41-43, 46)

Specification 1: Property Damage

Respondent is charged with damaging Complainant’s door without sufficient legal authority. Respondent did not deny that the ESU team damaged the door when they forced it open. The question for the tribunal is whether Respondent’s actions were reasonable given the surrounding circumstances. I find that they were.

Respondent and the members of the ESU team that responded to the scene, on the date in question, are highly trained members of a specialized unit whose responsibilities include dealing with barricaded individuals and door breaches. They were summoned to Complainant’s apartment by other officers who initially believed they were dealing with a barricaded EDP. It is undisputed that Complainant refused to open the door to her apartment, despite numerous requests from several MOS. The initial responding officers and Respondent reasonably believed that Complainant was suffering from an acute mental health crisis, that she had used a knife to

stab her ex-boyfriend's designer bag and that she had a criminal history of attempted manslaughter.

CCRB contends that Respondent erred in puncturing Complainant's door. They argue that the property damage was unnecessary because Complainant did not pose a threat to herself or others. They emphasized that Complainant was "fine," and her lawyer advised her not to open the door.

This Tribunal was persuaded by Respondent's credible testimony and his explanation of the protocols regarding a barricaded EDP, including the reasons those procedures exist. At trial, Respondent elaborated that their actions comported with NYPD procedure and ESU protocol for barricaded individuals, which permits them to make a hole in a door, usually through the peephole, to determine how many people are behind the door and if they have weapons.

In this instance, ESU cut a hole in the peephole in order to make a visual inspection of Complainant and her surroundings. Thereafter, they used a tool to breach the door so they could enter. In a situation such as this one, where a person is reported to be having a mental health crisis and armed with a knife, it was reasonable for Respondent and the ESU team to damage the door to access to an individual that they reasonably believed was a potential threat to herself or others.²

Accordingly, I find that, in light of the surrounding circumstances, Respondent's actions were reasonable, measured, and intended to ensure the safety of all parties.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

² It is worth noting that Sergeant Sze's BWC captures a conversation he had with a woman from "building management," prior to ESU's arrival, who offered to gain access of Complainant's apartment using a spare key that the building maintains. (CCRB Ex. 8 at 5:17) However, it is unclear from this trial record whether the information regarding the key was communicated to Respondent or the other members of ESU before they damaged Complainant's door.

Specification 2: Unlawful Entry

The Department has a carefully constructed policy and approach to handling encounters between officers and members of the public that are in crisis. The policy is contained in Patrol Guide procedure 221-13, entitled “Mentally Ill or Emotionally Disturbed Persons.” This section provides officers with clear guidance for safely interacting with a person in mental distress. Specifically, it instructs officers to take a person in mental crisis into “protective custody” when the individual has decompensated to the point that, in the officer’s judgement, the individual meets the definition of an EDP. In this case, Complainant had met this definition, and the officers had a duty to take her into custody for her own protection as well as that of the public.

CCRB argued that once ESU officers successfully inserted a camera inside Complainant’s door and it was clear that she was inside, alone and not in possession of a knife, the officers did not need to enter. This Tribunal disagrees and opines that leaving the apartment without ensuring Complainant was not a threat to herself or others would have been negligent. ESU’s responsibility did not end with their ability to see inside the apartment. Respondent and ESU had a continuing duty of care to Complainant to ensure her safety and to have her evaluated by a mental health professional.

As mentioned above, ESU is comprised of teams of highly trained personnel who are provided with state-of-the-art equipment and training to enhance their ability to preserve and protect human life. Prior to entering the apartment, the initial responding officers and ESU team attempted to gain Complainant’s voluntary compliance using a variety of communication techniques. However, when their efforts proved to be futile, Respondent and the duty captain determined that forced entry was necessary. This was an objectively reasonable, tactical decision that was consistent with Department guidance.

For the forgoing reasons, I find Respondent Not Guilty of Specification 2.

Specification 3: Search

Respondent is charged with unlawfully searching Complainant's apartment. It is undisputed that Respondent and ESU members looked in each room of Complainant's apartment, including behind doors, inside closets and in cabinets immediately after entering. CCRB argues that these actions constituted an improper search in violation of the Fourth Amendment. Respondent contends that this was not a search, but rather a "protective sweep," to ensure that there no other people in the room. As discussed below, the Tribunal agrees with Respondent's characterization and finds that the totality of the circumstances justified his actions.

In *Maryland v. Buie*, the Supreme Court defined a "protective sweep" as, "a quick and limited search of premises, incident to an arrest and conducted to protect the safety of police officers or others. It is narrowly confined to a cursory visual inspection of those places in which a person might be hiding." 494 U.S. 325, 327 (1990) The sweep is allowed when a police officer possesses, "articulable facts which, taken together with the rational inferences from those facts, would warrant a reasonably prudent officer in believing that the area to be swept harbors an individual posing a danger to those on the arrest scene." (*Id.*)

As discussed in the previous section, this Tribunal found that Respondent was operating in good faith and within Department guidelines when ESU breached Complainant's door and entered her apartment. Once they entered the apartment, Respondent directed the ESU team to conduct a protective sweep of the premises. Respondent described how the protective sweep is conducted: "We would check places where people can hide, or something can be placed into. We would check closets, under the couch, underneath the bed, the refrigerator, the freezer, the

dishwasher, the oven, cabinets, top and bottom.” (Tr. 39) He further asserted that ESU’s function once inside the premises is to “render the scene safe,” not to recover evidence. (Tr. 40)

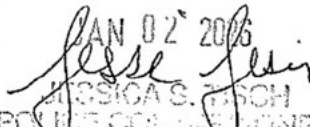
Respondent’s trial testimony is corroborated by his BWC footage which shows that the ESU team conducted a cursory search of the premises, lasting approximately two minutes and looking only in places where a person could hide. (CCRB Ex. 9 at 01:28-02:53, 03:37- 04:00)

Under the circumstances, it was not unreasonable for Respondent to conduct a limited visual inspection of the areas in the room where a person could hide, to make sure that no one was concealed therein who could pose a danger to themselves or other officers who might enter the apartment thereafter. Prudence dictated that ESU take these steps to minimize their exposure to an unknown threat. Moreover, Respondent acted with courtesy and professionalism throughout the encounter. Respondent conducted himself in the even-handed manner the Department expects from highly trained officers assigned to ESU, who are called to handle these types of potentially volatile situations. Accordingly, I find Respondent Not Guilty of Specification 3.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED
JAN 02 2016

JESSICA S. TISCH
POLICE COMMISSIONER